

The Stipulation attached as Exhibit 1 was executed by both parties. The terms of the agreement are straightforward. The parties stipulated to a judgment of \$7,127.69 which is the principal amount. No costs were part of the agreement. The agreement calls for a payment of \$527.69 on or before March 28, 2025 followed by minimum monthly payments of \$300.00 on or before the 28th of every month starting on April 28, 2025 until the balance is fully paid by January 28, 2027. The parties also agreed that following the dismissal, Plaintiff may reopen the case to enter judgment in the event of Defendant's failure to comply with the terms of payment described in the agreement.

The declaration of attorney Edgar B. Lopez establishes that Defendant has made no payments and the principal sum still owing is \$7,127.69. Plaintiff has sufficiently shown that Defendant breached the terms of the agreement by failing to make payments as owed. Plaintiff requests that the judgment include \$300.00 in costs, however, this was not included in the Stipulation. Plaintiff may file a Memorandum of Costs.

The Motion is **GRANTED**. The dismissal is set aside and Judgment for the Plaintiff will be entered in the amount of \$7,127.69. Plaintiff provided a proposed Order and proposed Judgment, both of which will be modified to reflect the Court's ruling.

9:00 a.m. – Review Hearings

BAILEY VS. OLSEN

CASE NUMBER: 24CV-0204127

This matter is on calendar for review regarding status of minor's compromise. An Order Approving Compromise was filed on June 15, 2026. The matter is continued to **Monday, August 10, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and status of dismissal. **No appearance is necessary on today's calendar.**

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. The Court previously granted a motion relieving Plaintiff's Counsel, Brian Pratt. A Notice of Entry of Order has been filed showing service of the order on Plaintiff Justin Baker. Mr. Pratt has been relieved effective upon service of the Notice of Entry of Order and Plaintiff is now self-represented. **An appearance is necessary on today's calendar to provide the Court with a status of the litigation and, if appropriate, to set this matter for trial.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of the case. The Court notes that Defendant Michael Wasgatt was dismissed. The Court called the Order to Show Cause Re: Striking Answer and Cross-Complaint on this morning's Law & Motion calendar. **An appearance by Plaintiff is necessary on today's calendar to discuss whether Plaintiff intends to move forward with a default as to the remaining Defendants.**

CRUZ VS. WINCO FOODS, LLC

CASE NUMBER: 24CV-0204817

This matter is on calendar for review regarding status of pleadings and trial setting. Cross-Defendant Diamond Janitorial Company, LLC was named in both Cross-Complaints but has not appeared. Counsel for Defendant Winco Foods has submitted a declaration stating that Diamond Janitorial has a suspended business license, cannot accept service nor file a responsive pleading. **An appearance is necessary on today's calendar to discuss how the parties intend to proceed.**